

SCHEDULE A: DEFINITIONS

Capitalized terms used in Part B of these Articles shall have the meanings ascribed to them as follows:

“ABC Policies and Procedures” means the policies and procedures set out in Schedule 7 of the Shareholders’ Agreement;

“Act” means the (Indian) Companies Act, 2013;

“Additional Funding” has the meaning given to it in Article 63;

“Affiliate” means, with respect to any Person, any other Person who, as of the relevant time for which the determination of affiliation is being made, directly or indirectly Controls, is Controlled by or is under common Control with such Person; *provided* that, unless expressly stated otherwise, neither the Company nor any of its Subsidiaries shall be deemed to be an “Affiliate” of Investor or any of its Group Undertakings for any purpose hereunder;

“Aggregate Shares” means, with respect to any Person, the total number of outstanding Common Equivalents owned, directly or indirectly (without duplication), by such Person and its Group Undertakings and Permitted Transferees as of the date of such calculation;

“Alternate Director” has the meaning given to it in Article 47(24);

“Announcement” means any public announcement, communication or circular concerning the existence, subject matter or terms of the Shareholders’ Agreement, the transactions contemplated by it, or the relationship between the Parties;

“Anti-Bribery Law” means all anti-bribery and corruption laws and regulations applicable to the Company and/or its Subsidiaries, including, and only to the extent so applicable, the following legislation and all successor legislation: (i) the Indian Prevention of Corruption Act 1988, (ii) the US Foreign Corrupt Practices Act of 1977; and (iii) any other Applicable Law concerning bribery, corruption or money laundering in any jurisdiction (including the Republic of India);

“Anti-Money Laundering Laws” means all anti-money laundering laws applicable to the Company and/or its Subsidiaries, including, and only to the extent so applicable, United States statute 18 U.S.C. §§ 1956 and 1957 and the Bank Secrecy Act, as amended by the USA PATRIOT Act, 31 U.S.C. §§ 5311 et seq., and its implementing regulations, 31 C.F.R. Chapter X, and all other anti-money laundering laws applicable to the Company and/or its Subsidiaries, including, and only to the extent so applicable, federal and local anti-money laundering laws in India, the Prevention of Money Laundering Act 2002 and regulations by the Reserve Bank of India (RBI);

“Applicable Law” means, with respect to any Person, any federal, state or local law (statutory, common or otherwise), constitution, treaty, convention, ordinance, code, rule, regulation, notification, guideline, order, injunction, judgment, decree, ruling or other similar requirement enacted, adopted, promulgated or applied by a Governmental Authority that is binding upon or applicable to such Person, whether in effect as of the date of the Shareholders’ Agreement or thereafter;

“Audit Committee” has the meaning given to it in Article 47(22);

“Audit Committee Nomination Right” has the meaning given to it in Article 47(22);

“Board” means the board of directors of the Company as constituted from time to time;

“Business” has the meaning given to it in the Shareholders’ Agreement;

“Business Day” means a day, other than a Saturday, Sunday or other day on which commercial banks in Mumbai, Maharashtra, India, or San Francisco, California are authorised or required by Applicable Law to close;

“Business Income Change Notice” has the meaning given to it in Article 66(6);

“Business Income Change Objection Notice” has the meaning given to it in Article 66(6);

“Capital Structure Change Notice” has the meaning given to it in Article 66(5);

“Capital Structure Change Objection Notice” has the meaning given to it in Article 66(5);

“CFC” has the meaning given to it in paragraph 6 of Schedule F;

“CFC Ownership Threshold” means, with respect to Investor or its Permitted Transferees on any given date, that, on such date, Investor and its Group Undertakings collectively hold a number of Equity Securities equal to less than ten percent (10%) of the total combined voting power of all classes of stock entitled to vote of the Company and also equal to less than ten percent (10%) of the total value of shares of all classes of stock of the Company, in each case within the meaning of Section 951(b) of the Code;

“Code” means the United States Internal Revenue Code of 1986, as amended;

“Common Equivalents” means (i) with respect to Equity Shares, the number of Equity Shares and (ii) with respect to any Equity Securities that are convertible into or exchangeable for Equity Shares, the number of Equity Shares issuable in respect of the conversion or exchange of such securities into Equity Shares;

“Company” means Jio Platforms Limited, a company organised and existing under the laws of the Republic of India, with its registered office at Office - 101, Saffron, Nr. Centre Point, Panchwati 5 Rasta, Ambawadi, Ahmedabad, Gujarat, India - 380006;

“Company Competitor” has the meaning given to it in the Shareholders’ Agreement;

“Competing Investment” has the meaning given to it in the Shareholders’ Agreement;

“Completion Preference Terms” has the meaning given to it in the Shareholders’ Agreement;

“Compulsorily Convertible Preference Shares” means the Compulsorily Convertible Preference Shares – Series A in the Company, having the terms set forth in the Completion Preference Terms;

“Constitutional Documents” means, in relation to any Person (other than an individual), the certificate of incorporation, charter, corporate bylaws, memorandum of association, articles of association or other similar organisational documents of such Person;

“Control” means, with respect to any Person, the possession by another Person (or Persons acting in concert) of the power, directly or indirectly, to direct the management and policies of such Person or ownership of more than fifty percent (50%) of the voting (or equivalent) rights exercisable at the general meetings (or equivalent) of such Person, in either case whether by means of:

- (a) having the right to appoint or remove a majority of the board of directors (or equivalent governing body) of such Person or holding a majority of the voting rights at meetings of the board of directors (or equivalent governing body) of such Person;

- (b) being otherwise able to control a majority of the votes at board (or equivalent governing body) meetings of such Person by virtue of any rights attaching to securities or partnership or other ownership interests held or powers conferred by the Constitutional Documents, any shareholders' agreement or any other document regulating the affairs of such Person; or
- (c) having rights to direct the management or policies of such Person under a contract or otherwise,

and "**Controlled**" shall be construed accordingly;

"**Conversion Share Sale**" means a bona fide sale, to one or more third parties, by RIL or any of its Permitted Transferees without a public offering, in a single transaction or a series of related transactions, of Conversion Shares, where such sale satisfies each of the applicable conditions set forth in Article 58;

"**Conversion Shares**" has the meaning given to it in Article 58(3.1);

"**Deadlock**" has the meaning given to it in Article 60(1);

"**Deadlock Notice**" has the meaning given to it in Article 60(1);

"**Deed of Adherence**" means a deed of adherence in the form set out in Schedule 5 of the Shareholders' Agreement;

"**Default**" has the meaning given to it in Article 61(1);

"**Defaulting Party**" has the meaning given to it in Article 61(1);

"**Director**" means a director of the Company;

"**Drag-Along Notice**" has the meaning given to it in Article 52(1);

"**Drag-Along Portion**" means, with respect to any Person and for any Drag-Along Sale, (i) the Aggregate Shares of such Person immediately prior to the completion of such Drag-Along Sale multiplied by (ii) a fraction, the numerator of which is the aggregate number of outstanding Common Equivalents to be sold by RIL in such Drag-Along Sale and the denominator of which is the Aggregate Shares of RIL immediately prior to the completion of such Drag-Along Sale;

"**Drag-Along Sale**" means the bona fide acquisition by a third party or parties (other than RIL or any of its Affiliates or any Person in which RIL or any of its Affiliates has a greater than 10% equity or voting interest), whether in a single transaction or a series of related transactions, of greater than fifty percent (50%) of the entire issued equity share capital of the Company (as determined on a Fully Diluted basis) by means of any transaction or series of related transactions (including any share purchase, business combination, reorganization, merger, consolidation, amalgamation or scheme of arrangement);

"**Drag-Along Transferee**" has the meaning given to it in Article 52(1);

"**Dragged Shareholder**" has the meaning given to it in Article 52(1);

"**Encumbrance**" means, with respect to any asset, any mortgage, easement, encroachment, equitable interest, title retention device, conditional sale or other security arrangement, collateral assignment, pending claim, community property interest, adverse claim of title, ownership or right to use, right of first refusal or other encumbrance of any kind in respect of such asset (including any restriction on (i) the voting of any security or the transfer of any

security or other asset, (ii) the receipt of any income derived from such asset, and (iii) the use of any such asset);

“Equity Securities” means (i) Equity Shares; or (ii) any other shares, securities, debentures, warrants or options that are convertible into or exercisable or exchangeable for, or any other instrument, document or security granting a right of subscription for, or conversion into Equity Shares, including the Compulsorily Convertible Preference Shares and the Optionally Convertible Preference Shares;

“Equity Shares” means fully paid-up equity shares of the Company of face value of ten (10) INR;

“Exchange Rate” means, with respect to the conversion reference rate for any other currency into INR on a particular day, the conversion reference rate for such other currency into INR as specified on the website of Financial Benchmarks India Private Limited on the Business Day immediately prior to such date;

“Exercise Notice” has the meaning given to it in Article 56(2);

“Exercise Notice Period” has the meaning given to it in Article 56(2);

“Financial Investor Floor Price” has the meaning given to it in the Shareholders’ Agreement;

“Freely Tradeable Securities” means, with respect to the consideration payable or issuable to a Shareholder in connection with the Transfer of Equity Securities in a Tag-Along Sale or a Drag-Along Sale, equity securities that may be resold by such Shareholder immediately following the completion of such Transfer on any nationally-recognized stock exchange in India or the United States, in each case, without regard to any limitations or restrictions on resale imposed under any applicable securities laws, rules or regulations;

“Fully Diluted” means that the calculation should be made assuming that all outstanding Equity Securities convertible into or exercisable or exchangeable for Equity Shares (whether or not by their terms then currently convertible, exercisable or exchangeable) have been so converted, exercised or exchanged in accordance with the terms thereof, including the Compulsorily Convertible Preference Shares and the Optionally Convertible Preference Shares;

“General Meeting” has the meaning given to it in Article 48(1);

“Google” means Google International LLC and its “Permitted Transferees” as defined in the Google Shareholders’ Agreement;

“Google Investment Agreement” means the investment agreement dated 14 July 2020 among the Company, RIL and Google International LLC;

“Google Shareholders’ Agreement” means the “Shareholders’ Agreement” as defined in the Google Investment Agreement;

“Government Entity” means any commercial company, enterprise or other entity that is majority owned or controlled by any government (whether wholly or partially) or any public international organisation (including the United Nations and the World Bank);

“Government Official” means any officer, employee, director, or other representative of any government or Governmental Authority in any jurisdiction, or any person acting in an official capacity for or on behalf of any such Governmental Authority or Government Entity or any candidate for political office or any political party (or its officials);

“Governmental Authority” means any national, regional, local, or foreign government, international authority (including, in each case, any central bank or fiscal, tax or monetary authority), governmental agency, authority, ministry, commission, instrumentality, division, or department, the government of any prefecture, state, province, country, municipality or other political subdivision thereof, and any governmental body, authority, board or commission, or any instrumentality or officer acting in an official capacity of any of the foregoing, including any court, arbitral tribunal or committee exercising any executive, legislative, judicial, regulatory or administrative functions of government;

“Group Undertaking” means,

- (a) with respect to RIL, RIL and any Subsidiary of RIL;
- (b) with respect to Investor, Investor, Parent, and any Subsidiary of Parent; and
- (c) with respect to any other shareholder, such shareholder, such shareholder’s ultimate parent entity (where such shareholder is a wholly-owned Subsidiary of another entity) and any Subsidiary of such shareholder (or such shareholder’s ultimate parent company, as applicable),

provided that neither the Company nor any of its Subsidiaries shall at any time be construed to be Group Undertakings of any Shareholder;

“Incremental Equity Financing” means a bona fide equity financing, raised from one or more third parties without a public offering, in a single transaction or a series of related transactions, where such equity financing satisfies each of the applicable conditions set forth in Article 58;

“Independent Valuer” means an independent valuer appointed by the Company from a Qualifying Accounting Firm (excluding the auditor of the Company) or any other internationally recognised firm of accountants;

“Indian Accounting Standards” means the accounting standards notified under Section 133 of the Act read with the Companies (Indian Accounting Standards) Rules 2015;

“Initial Deadlock Representatives” has the meaning given to it in Article 60(1);

“INR” means Indian Rupees, the lawful currency of the Republic of India;

“Insolvency Event” means in relation to a Person:

- (a) the Person resolving to enter into any arrangement, composition or compromise with or assignment for the benefit of its creditors or any class of them or filing a voluntary proceeding under bankruptcy, insolvency, winding up or other similar Applicable Law or consenting to the entry of an order for relief in an involuntary proceeding under any such Applicable Law;
- (b) admission of involuntary proceedings under bankruptcy, insolvency, winding up or other similar Applicable Law against the Person;
- (c) the Person consenting to or any encumbrancer taking possession of the assets or property of the Person, or an interim resolution professional, resolution professional, liquidator, provisional liquidator, judicial custodian, receiver, receiver and manager, administrative receiver, trustee or any analogous officer being appointed in respect of the Person, or any of the assets or property of the Person, or an attachment, sequestration, distress or execution (or analogous process) being levied or enforced upon or issued against any of the assets or property of the Person (in each case whether out of court or otherwise);

- (d) any other event occurs that would, under any Applicable Law, have a substantially similar effect to any of the events listed above;

“International Trade Law” means all economic sanctions, trade embargoes, import and export controls, anti-boycott restrictions, customs and restrictive measures applicable to the Company and/or its Subsidiaries, including, and only to the extent so applicable, restrictive measures promulgated by OFAC, the U.S. Department of Commerce Bureau of Industry and Security, the U.S. Department of State Directorate of Defense Trade Controls, the Republic of India, the United Nations, European Union, United Kingdom, and any other relevant Governmental Authority;

“Investment Agreement” means the Investment Agreement dated April 21, 2020 among RIL, the Company, Investor and Parent, as amended by the Amendment Agreement dated May 3, 2020, the Second Amendment Agreement dated June 4, 2020 and the Third Amendment Agreement dated July 7, 2020, in each case among RIL, the Company, Investor and Parent;

“Investor” means Jaadhu Holdings, LLC, a company organised and existing under the laws of the State of Delaware, with its registered office at 251 Little Falls Drive, City of Wilmington, County of New Castle, 19808;

“Investor Director” means the director nominated for appointment to the Board by Investor;

“Investor Initiation Notice” has the meaning given to it in Article 57(8);

“Investor Observer” has the meaning given to it in Article 47(3);

“IPO Committee” has the meaning given to it in Article 57(4);

“Irrevocable Acceptance Notice” has the meaning given to it in Article 54(4);

“Issuance Notice” has the meaning given to it in Article 56(1);

“Lock-In Period” has the meaning given to it in Article 50(1);

“Losses” means any and all losses, damages, liabilities, costs and expenses (including amounts paid in settlements, judgments, awards, court costs and all reasonable attorney fees), fines, Tax(es), interest or penalties, *provided, however* that Loss shall not include any punitive damages, loss of profit, loss of revenue, loss of opportunity, loss of goodwill or possible business, whether actual or prospective loss, any indirect or consequential loss or any loss that is not reasonably foreseeable, but Loss shall include any diminution or reduction in the value of the Equity Securities held by Investor;

“Mandatory Consent” means any approval or the termination of any applicable waiting period pursuant to Applicable Law in any country or the requirements of any Governmental Authority without which a Transfer or issuance of Equity Securities would be unlawful or otherwise prohibited or restricted;

“Master Services Agreement” means the Master Services Agreement by and between the Company, Reliance Retail Limited and WhatsApp Inc. dated 7 July 2020 (including (i) the Commerce Integration Agreement (as defined in the Investment Agreement) and (ii) any other schedules thereto as may be executed from time to time);

“Minimum Ownership Threshold” means, with respect to Investor or its Permitted Transferees on any given date, that, on such date, Investor and its Group Undertakings and Permitted Transferees collectively hold a number of outstanding Common Equivalents equal to at least sixty-five percent (65%) of Investor’s Aggregate Shares as of the date of the

Shareholders' Agreement (as appropriately adjusted for any share split, share dividend, reverse share split, return of capital, consolidation, combination, subdivision, re-classification, cancellation of or other recapitalization or reorganization or restructuring effected after the date of the Shareholders' Agreement);

"New Investor" has the meaning given to it in Article 58(1);

"New Investor Shareholders' Agreement" has the meaning given to it in Article 58(6.1);

"Non-Defaulting Party" has the meaning given to it in Article 61(1);

"Notice of Default" has the meaning given to it in Article 61(1);

"OCPS Redemption Price" has the meaning given to it in the Shareholders' Agreement;

"OFAC" means the Office of Foreign Assets Control of the United States Department of the Treasury;

"Offer Notice" has the meaning given to it in Article 54(1);

"Offer Period" has the meaning given to it in Article 54(4);

"Offer Price" has the meaning given to it in Article 54(2.2);

"Offered Securities" has the meaning given to it in Article 54(2.1);

"Offeror" has the meaning given to it in Article 54(1);

"Optionally Convertible Preference Shares" means the Optionally Convertible Preference Shares – Series A of the Company outstanding as of the date of the Original Shareholders' Agreement after giving effect to the Redemption as contemplated by, and defined in, the Investment Agreement and having the terms set forth in the Completion Preference Terms;

"Ordinary Course of Business" means, in the context of the Business, the ordinary and usual course of business of the Company or its Subsidiaries consistent with past custom and practice in all material respects (except with respect to all uses of such term in paragraph 9 of Schedule C, for which purposes the materiality qualifier contained in this definition shall be disregarded);

"Original Director" has the meaning given to it in Article 47(24);

"Original Issue Price" has the meaning given to it in the Shareholders' Agreement;

"Original Shareholders' Agreement" means the Shareholders' Agreement dated July 7, 2020 among RIL, the Company, Investor and Parent;

"Parent" means Facebook, Inc., a company organised and existing under the laws of the State of Delaware, with its registered office at 251 Little Falls Drive, City of Wilmington, County of New Castle, 19808;

"Party" means each of RIL, the Company, Investor and Parent;

"Parties" means RIL, the Company, Investor and Parent, collectively;

"Permitted Share Transaction" has the meaning given to it in Article 58(1);

“Permitted Share Transaction Period” means the period commencing on 21 April 2020 and ending at 5:00pm IST on 31 December 2020;

“Permitted Transfer” has the meaning given to it in Article 55(1);

“Permitted Transferee” means,

- (a) with respect to RIL, any Subsidiary of RIL (other than the Company or any of its Subsidiaries);
- (b) with respect to Investor, Parent, and any wholly-owned Subsidiary of Parent; and
- (c) with respect to any other Shareholder, such Shareholder’s ultimate parent entity (where such Shareholder is a wholly-owned Subsidiary of another entity) and any wholly-owned Subsidiary of such Shareholder (or such Shareholder’s ultimate parent company, as applicable);

“PFIC” has the meaning given to it in Article 66(6);

“Pro Rata Share” means, with respect to any Person, the fraction that results from dividing (1) such Person’s total number of Equity Shares (as determined on a Fully Diluted basis) by (2) the total number of Equity Shares (as determined on a Fully Diluted basis) outstanding immediately prior to giving effect to the relevant issuance;

“promoter” has the meaning given to it in Regulation 2(1)(oo) of SEBI (Issue of Capital and Disclosure Requirements) Regulations 2018;

“Qualified Equity Financing” means a bona fide equity financing, raised from one or more third parties or from RIL or any of its Affiliates without a public offering, in a single transaction or a series of related transactions, so long as such financing comprises Equity Shares only, and such Equity Shares:

- (a) satisfy each of the conditions set forth in Article 58(5.1) (as if such financing constituted an Incremental Equity Financing); and
- (b) were issued subject to the pre-emptive rights of other Shareholders set forth in Article 56;

“Qualifying Accounting Firm” means any of, or any Affiliate of or firm currently associated with, PricewaterhouseCoopers, Deloitte Touche Tohmatsu LLC, Ernst & Young, KPMG, or such other accounting firm as may be agreed in writing between RIL and Investor;

“Qualifying Exchange” means (i) any nationally-recognized stock exchange in India or (ii) any other nationally-recognized stock exchange as RIL and Investor may mutually agree in writing;

“Qualifying IPO” means the first public offering by the Company of Equity Shares (including by way of an offer for sale by RIL, Investor or any of their respective Permitted Transferees) that results in the listing of Equity Shares on a Qualifying Exchange where:

- (a) the offering is principally managed by, and has as the primary book runner, an internationally recognized investment bank;
- (b) the aggregate net proceeds (i.e., net of all underwriting discounts and other fees and expenses of the book runners and other investment banks in connection with the offering) received from the offering is at least seventy-five billion Indian Rupees (75,000,000,000 INR);

- (c) if the offering occurs on or prior to the fourth anniversary of Completion (as defined in the Google Investment Agreement), such offering has an offering price per Equity Share of no less than the Original Issue Price; and
- (d) if the number of Equity Shares requested to be included in the offering (including any Equity Shares that the Company, Investor, RIL, their respective Permitted Transferees and any other shareholder of the Company with the right to request the inclusion of Equity Shares in the offering proposes to be included in such offering) exceeds the largest number of Equity Shares that can be sold without having an adverse effect on such offering, including the price at which such shares can be sold, as determined in good faith by the Board (the “**Maximum Offering Size**”), the Equity Shares included in the offering consist of (in each case, only up to the Maximum Offering Size): (i) first, all primary Equity Shares that the Company wishes to be included in such offering, (ii) second, that number of Equity Shares held by RIL required to satisfy the minimum legal requirement under Rule 19(2)(b) of the Securities Contracts (Regulations) Rules, 1957 of twenty-five percent (25%) non-promoter ownership of the Company (taking into account the primary Equity Shares to be included in the offering by the Company), (iii) third, any Equity Shares that Investor, its Permitted Transferees or any other shareholder of the Company with the right to request the inclusion of Equity Shares in the offering (other than RIL or its Affiliates) propose to be included in the offering, up to a maximum of 25% of the total number of outstanding Common Equivalents owned by each such shareholder (allocated, if necessary for the offering not to exceed the Maximum Offering Size, pro rata among such shareholders in proportion to the relative number of Aggregate Shares held by each such shareholder as compared to the total number of outstanding Common Equivalents held by all such shareholders immediately prior to the completion of the offering) and (iv) fourth and last, any additional Equity Shares that RIL, Investor, any of their respective Permitted Transferees and any other shareholder of the Company with the right to request the inclusion of Equity Shares in the offering wishes to include in the offering (allocated, if necessary for the offering not to exceed the Maximum Offering Size, pro rata among such shareholders in proportion to the relative number of Aggregate Shares held by each such shareholder as compared to the total number of outstanding Common Equivalents held by all such shareholders immediately prior to the completion of the offering);

“**Redeemed OCPS**” has the meaning given to it in Article 58(2.1);

“**Related Party Transaction**” means any transaction, contract, understanding, arrangement, program or relationship or any series of related transactions, contracts, understandings, arrangements, programs or relationships in which:

- (a) the Company or any of its Subsidiaries is a participant or party; and
- (b) any of (i) any ‘related party’ (as defined in the Act) (other than the Company or any of its Subsidiaries) of the Company or any of its Subsidiaries, (ii) RIL or any of its Affiliates (other than the Company or any of its Subsidiaries) or (iii) any promoter or promoter group of RIL is also a participant or party;

“**Relevant Entity**” has the meaning given to it in Schedule F;

“**Representatives**” means, in relation to a Person, any of such Person’s Affiliates and its and each of its Affiliate’s directors, officers, employees, agents, counsel, investment advisers and financing sources (subject to customary confidentiality obligations);

“**Reserved Matter**” means any matter listed in Schedule C;

“Restricted Territory” means any country or other territory subject to an export, import, financial or investment embargo under any International Trade Law;

“Restricted Transferee” means:

- (a) any Person subject to an ongoing Insolvency Event;
- (b) any Person that is, or whose Affiliate is, a Sanctioned Person; and
- (c) any Company Competitor;

“RIL” means Reliance Industries Limited, a company organized and existing under the laws of the Republic of India, with its registered office at Maker Chambers IV, 3rd Floor, 222 Nariman Point, Mumbai 400 021, India;

“RIL Director” means a Director nominated for appointment to the Board by RIL, other than any independent Director;

“RIL Initiation Notice” has the meaning given to it in Article 57(1);

“ROFR Offer” has the meaning given to it in Article 54(3);

“Sanctioned Person” means any Person:

- (a) designated on the list of Specially Designated Nationals and Blocked Persons maintained by the OFAC (as amended from time to time);
- (b) designated on the consolidated list of financial sanctions targets designated by the United Nations, European Union and United Kingdom under legislation relating to current financial sanctions regimes as maintained in the United Kingdom by Her Majesty’s Treasury (as amended from time to time);
- (c) designated on the list of investment ban targets designated by the United Kingdom under legislation relating to current financial sanctions regimes maintained in the United Kingdom by Her Majesty’s Treasury (as amended from time to time);
- (d) designated on the consolidated list of persons, groups and entities subject to EU financial sanctions maintained by the European Union (as amended from time to time);
- (e) designated on any other list of targeted persons, entities, groups or bodies issued by the United Nations, United States, United Kingdom or European Union (or any member state of the European Union);
- (f) that is, or is part of, a government of a Restricted Territory;
- (g) directly or indirectly, owned or controlled by, or acting on behalf of, any of the foregoing;
- (h) incorporated or located within or operating from a Restricted Territory;
- (i) otherwise prohibited to be transacted with under any International Trade Law;
- (j) designated as a wilful defaulter by Reserve Bank of India or a fugitive economic offender by any Governmental Authority in India;
- (k) who owns fifty percent (50%) or more, individually or in the aggregate, of an entity designated on a restricted persons list maintained by the United Nations, United

States, United Kingdom or European Union (or any member state of the European Union); or

- (l) who is located, organised, or resides in a jurisdiction subject to comprehensive sanctions maintained by the United Nations, United States, United Kingdom or European Union (or any member state of the European Union), including but not limited to Cuba, Iran, North Korea, Syria, and the Crimea region of Ukraine;

“Shareholder” means:

- (a) RIL and its Permitted Transferees who hold Equity Securities in accordance with these Articles;
- (b) Investor and its Permitted Transferees who hold Equity Securities in accordance with these Articles; and
- (c) each other holder of Equity Securities that has signed a counterpart to the Shareholders’ Agreement or has executed and delivered a Deed of Adherence to the Company and the other Shareholders, and such holder’s Permitted Transferees who hold Equity Securities,

and will include each such Person’s successors (including successors in interest pursuant to an intra-group transaction, such as an intra-group merger, demerger, business / undertaking sale or transfer) pursuant to or following a transaction undertaken in accordance with these Articles;

“Shareholders’ Agreement” means the Amended and Restated Shareholders’ Agreement dated November 22, 2020 among RIL, the Company, Investor and Parent;

“Specified Amendment” has the meaning given to it in Article 58(9);

“Specified Rights” has the meaning given to it in Article 55(3);

“Specified Shareholder” has the meaning given to it in Article 52(5.3);

“Specified Transferee” means any third party transferee of Investor or a Permitted Transferee of Investor:

- (a) that has been sanctioned under or been publicly censured in respect of any Anti-Bribery Law; or
- (b) that is, or has in the preceding five (5) years been, a party to a material dispute with RIL or any of its Group Undertakings, or the Company or any of its Subsidiaries, that has resulted in such Person threatening in writing or commencing litigation against RIL or any of its Group Undertakings, or the Company or any of its Subsidiaries;

“Strategic Investor” means (i) any Person that, together with its Subsidiaries, conducts a portion of its business in one or more lines of business which has either a vertical or horizontal relationship with the Business (as determined in good faith by the Board) and (ii) any Subsidiary of a Person referred to in clause (i) above, in each case of clause (i) and clause (ii), excluding any Person, together with its Subsidiaries, whose principal business activity is acquiring, holding and/or selling investments (including controlling interests) and who manages such investments on behalf of third parties and either (x) such third parties’ equity securities are not publicly traded or (y) such Person earns a management or advisory fee in relation thereto and/or is entitled to a negotiated percentage of the profits from any such investments; provided that, for clarity, no private equity firm, sovereign wealth fund or pension plan shall be considered a Strategic Investor;

“Subscription Securities” means the Equity Shares and the Compulsorily Convertible Preference Shares issued and allotted by the Company to Investor pursuant to the Investment Agreement;

“Subsidiary” means, with respect to (i) any Person (other than the Company), any corporation, partnership, limited liability company or other Person of which such Person, either on its own or together with one or more of its Subsidiary companies (a) is entitled, by contract or otherwise, to elect, appoint or designate directors constituting a majority of the members of such Person’s board of directors or other governing body or (b) directly or indirectly owns, beneficially or of record, securities or other interests that represent more than one-half of the total share capital, voting power, or financial interests of such Person, and (ii) the Company, “subsidiary” as defined under the Act, and the term **“Subsidiaries”** shall be construed accordingly;

“Tag-Along Notice” has the meaning given to it in Article 51(1);

“Tag-Along Notice Period” has the meaning given to it in Article 51(3);

“Tag-Along Portion” means, with respect to any Tagging Shareholder and for any Tag-Along Sale, a fraction (i) the numerator of which is the Aggregate Shares of such Tagging Shareholder immediately prior to the completion of such Tag-Along Sale and (ii) the denominator of which is the total number of Common Equivalents outstanding immediately prior to the completion of such Tag-Along Sale;

“Tag-Along Response Notice” has the meaning given to it in Article 51(3);

“Tag-Along Right” has the meaning given to it in Article 51(3);

“Tag-Along Sale” has the meaning given to it in Article 51(1);

“Tagging Shareholder” has the meaning given to it in Article 51(3);

“Tax” means any taxation, levies, duties, charges, contributions, withholdings or imposts in the nature of a tax (including any related fines, penalties, surcharges or interest) imposed, collected or assessed by, or payable to, a Tax Authority in any jurisdiction;

“Tax Authority” means any Governmental Authority exercising a fiscal, revenue, customs or excise function which is competent to impose, administer, assess or collect a liability relating to Tax;

“Third Party Offer” has the meaning given to it in Article 54(1);

“Transaction Documents” means the Shareholders’ Agreement, the Investment Agreement, the Master Services Agreement, the Restated Charter Documents (as defined in the Investment Agreement) and any other document that the Parties agree to designate as a “Transaction Document” for the purposes of the Shareholders’ Agreement;

“Transfer” means, with respect to any securities:

- (a) when used as a verb, to sell, assign, dispose of, exchange, pledge, Encumber, hypothecate or otherwise transfer any such securities or any participation or interest therein, whether directly or indirectly (including pursuant to a derivative transaction or the grant of any option over or in respect of it), or agree or commit to do any of the foregoing; and
- (b) when used as a noun, a direct or indirect sale, assignment, disposition, exchange, pledge, Encumbrance, hypothecation, or other transfer of any such securities or any

participation or interest therein (including the grant of any option over or in respect of it), or any agreement or commitment to do any of the foregoing,

in each case, whether voluntary or involuntary, whether or not for consideration and whether effected by an instrument in writing, by operation of Applicable Law or otherwise;

“Transferor” has the meaning given to it in Article 55(1).